THE UNIVERSITY OF ALLAHABAD ACT, 2005

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THE SCHEDULE

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THE UNIVERSITY OF ALLAHABAD ACT, 2005

ACT NO. 26 OF 2005

[23*rd June*, 2005.]

An Act to declare the University of Allahabad to be an institution of national importance and to provide for its incorporation and matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Fifty-sixth Year of the Republic of India as follows:—

1. Short title and commencement.—(*1*) This Act may be called the University of Allahabad Act, 2005.

(*2*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint and different dates may be appointed for different provisions of this Act.

2. Declaration of University of Allahabad as Institution of national importance.—Whereas the objects of the University of Allahabad in the State of Uttar Pradesh are such as to make it an Institution of national importance, it is hereby declared that the said University is an Institution of national importance.

3. Definitions.—In this Act, and in all Statutes made hereunder, unless the context otherwise requires,—

(*a*) "Academic Council" means the Academic Council of the University;

(*b*) "academic staff" means such categories of staff as are designated as academic staff by the Statutes;

(*c*) "appointed day" means the date of establishment of the University of Allahabad under sub-section (*1*) of section 4;

(*d*) "Centre" means a unit of the University or of a University Institute providing teaching, consultancy and research facilities;

(*e*) "Chancellor" means the Chancellor of the University appointed under section 13;

(*f*) "Constituent College" means a college prescribed as such by the Statutes;

(*g*) "Constituent Institute" means an Institute prescribed as such by the Statutes;

(*h*) "Court" means the Court of the University;

(*i*) "Department" means a Department of a Faculty;

(*j*) "Director" means the head of a University Institute or Constituent Institute;

(*k*) "employee" means any person appointed by the University and includes teachers and other staff of the University;

(*l*) "Executive Council" means the Executive Council of the University;

(*m*) "Faculty" means a Faculty of the University;

(*n*) "Finance Officer" means the Finance Officer of the University appointed under section 18;

(*o*) "Ordinances" means the Ordinances of the University;

(*p*) "Principal" means the head of a University College or a Constituent College;

(*q*) "Pro-Vice-Chancellor" means the Pro-Vice-Chancellor of the University appointed under section 15;

(*r*) "Registrar" means the Registrar of the University appointed under section 17;

(*s*) "Regulations" means the Regulations of the University;

(*t*) "Statutes" means the Statutes of the University;

1. 14th July, 2005, *vide* notification No. S.O. 978(E), dated 11th July, 2005, *see* Gazette of India, Extraordinary, Part II, sec. 3(*ii*).

(*u*) "teacher" means Professors, Readers and Lecturers appointed or recognised by the University;

(*v*) "University" means the University of Allahabad established and incorporated under section 4;

(*w*) "University appointed teacher" means a teacher appointed by the University for imparting instruction and conducting research in the University or any college or institution maintained by the University;

(*x*) "University College" means a college or an institution maintained by the University or admitted to the privileges of the University as a Faculty;

(*y*) "University Institute" means an Institute, established and maintained by the University;

(*z*) "University recognized teacher" means a teacher recognized by the University for imparting instruction and conducting research in a college or institution admitted to the privileges of the University; and

(*za*) "Vice-Chancellor" means the Vice-Chancellor of the University appointed under section 14.

4. Incorporation of University of Allahabad.—(*1*) The University of Allahabad in the State of Uttar Pradesh, established under the Uttar Pradesh State Universities Act, 1973 (President's Act 10 of 1973), shall be established as a body corporate under this Act having perpetual succession and a common seal and shall sue and be sued by the said name.

(*2*) The first Chancellor, the first Vice-Chancellor and the first members of the Court, the Executive Council and the Academic Council, and all persons who may hereafter become such officers or members, so long as they continue to hold such office or membership, shall constitute the University.

(*3*) The headquarters of the University shall be at Allahabad.

5. Effect of incorporation of Allahabad University.—On and from the appointed day,—

(*a*) any reference to the University of Allahabad in any law (other than this Act) or in any contract or other instrument shall be deemed as a reference to the University;

(*b*) all properties, movable and immovable, of or belonging to the University of Allahabad shall vest in the University;

(*c*) all rights and liabilities of the University of Allahabad shall be transferred to, and be the rights and liabilities of, the University;

(*d*) every person employed by the University of Allahabad immediately before the appointed day shall hold his office or service in the University by the same tenure, at the same remuneration and upon the same terms and conditions and with the same rights and privileges as to pension, leave, gratuity, provident fund and other matters as he would have held the same if this Act had not been passed, and shall continue to do so unless and until his employment is terminated or until such tenure, remuneration and terms and conditions are duly altered by the Statutes:

Provided that if the alteration so made is not acceptable to such employee, his employment may be terminated by the University in accordance with the term of the contract with the employee or, if no provision is made therein in this behalf, on payment to him by the University of compensation equivalent to three months' remuneration in case of permanent employees and one month's remuneration in the case of other employees:

Provided further that every person employed before the appointed day, pending the execution of a contract under section 34, shall be deemed to have been appointed in accordance with the provisions of a contract consistent with the provisions of this Act and the Statutes:

Provided also that any reference, by whatever form of words, to the Vice-Chancellor and Pro-Vice-Chancellor of the University of Allahabad in any law for the time being in force, or in any instrument or other document, shall be construed as a reference respectively to the Vice-Chancellor and the Pro-Vice-Chancellor of the University;

(*e*) the Vice-Chancellor of the University, appointed under the provisions of the Uttar Pradesh State Universities Act, 1973 (President's Act 10 of 1973) shall be deemed to have been appointed as

the Vice-Chancellor under this Act, and shall hold office for a period of three months or till such time the Vice-Chancellor is appointed, whichever is earlier.

6. Objects of University.—The objects of the University shall be to disseminate and advance knowledge by providing instructional and research facilities in such branches of learning as it may deem fit; to make provisions for integrated courses in the humanities, the social sciences, the basic and applied science and technology in the educational programmes of the University; to take appropriate measures for promoting innovations in teaching-learning process, interdisciplinary and professional studies and research, removal of gender disparities and the digital divide, and the application of knowledge to social advancement, national progress and human welfare; and to educate and train human resource for the development of the country.

7. Powers of University.—The University shall have the following powers, namely:—

(*i*) to provide for instruction in such branches of learning as the University may, from time to time, determine and to make provisions for research and for the advancement and dissemination of knowledge;

(*ii*) to grant, subject to such conditions as the University may determine, diplomas or certificates and confer degrees or other academic distinctions on the basis of examinations, evaluation or any other method of testing and to withdraw any such diplomas, certificates, degrees or other academic distinctions for good and sufficient cause;

(*iii*) to confer honorary degrees or other distinctions in the manner prescribed by the Statutes;

(*iv*) to organise and to undertake open learning programmes, extramural studies, training and extension services;

(*v*) to institute Chairs, Principalships, Professorships, Readerships and Lecturerships and other teaching and academic positions, required by the University and to appoint persons to such Chairs, Principalships, Professorships, Readerships and Lecturerships and other teaching and academic positions;

(*vi*) to recognize persons as University recognized teachers;

(*vii*) to declare persons working in any other University or organisation, as teachers of the University;

(*viii*) to appoint, on contract or otherwise, visiting Professors, Emeritus Professors, Consultants, Scholars and such other persons who may contribute to the advancement of the objects of the University;

(*ix*) to create administrative, ministerial and other posts and to make appointments thereto;

(*x*) to lay down conditions of service of all categories of employees, including their code of conduct;

(*xi*) to establish and maintain University Colleges and University Institutes for imparting instruction and conducting research;

(*xii*) to admit to its privileges colleges and institutions situated within the territorial jurisdiction of the University, as University Colleges, Constituent Institutes and Constituent Colleges, and to withdraw all or any of those privileges in accordance with such conditions as may be prescribed by the Statutes;

(*xiii*) to confer autonomous status on a college or an institution or a Department, as the case may be, and to withdraw such status, in accordance with the Statutes;

(*xiv*) to co-operate or collaborate or associate with any other University or authority or institution of higher learning in such manner as may be prescribed and for such purposes as the University may determine;

(*xv*) to determine standards of admission, including examination, evaluation or any other method of testing, to the University, and the institutions maintained by or admitted to the privileges of the University;

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(*xvi*) to demand and receive payment of fees and other charges;

(*xvii*) to establish and recognise hostels and supervise the residence of the students of the University, make arrangements for promoting their health and general welfare and guide the Constituent Colleges and the Constituent Institutes to like ends in respect of the students enrolled thereat;

(*xviii*) to regulate and enforce discipline among the students and the employees, and to take such disciplinary measures in this regard as may be deemed by the University to be necessary;

(*xix*) to institute and award fellowships, scholarships, studentships, medals and prizes;

(*xx*) to receive benefactions, donations and gifts and to acquire, hold, manage and dispose of any property, movable or immovable, including trust and endowment properties, for the purposes of the University:

Provided that no immovable property shall be disposed off except with the prior approval of the Central Government;

(*xxi*) to borrow, with the approval of the Central Government, on the security of the property of the University, money for the purposes of the University; and

(*xxii*) to do all such other acts and things as may be necessary, incidental or conducive to the attainment of all or any of the objects of the University.

8. Jurisdiction.—(*1*) Save as otherwise provided by this Act, the powers conferred on the University shall be exercisable in respect of the area within a radius of sixteen kilometres from the Convocation Hall of the University, without prejudice to the territorial jurisdiction over the said area that may be assigned to any other University.

(*2*) On and from the appointed day, all institutions admitted to the privileges of, or maintained by, the University of Allahabad as incorporated under the Uttar Pradesh State Universities Act, 1973 (President's Act 10 of 1973) shall stand admitted to the privileges of, or maintained by, the University and shall be governed by such conditions as may be prescribed by Statutes.

9. University open to all persons irrespective of gender, class or creed.—The University shall be open to all persons of either sex and of whatever caste, creed, race or class and it shall not be lawful for the University to adopt or impose on any person, any test whatsoever of religious belief or profession in order to entitle him to be appointed as a teacher of the University or to hold any office therein or be admitted as a student in the University or to graduate thereat or to enjoy or exercise any privilege thereof:

Provided that nothing in this section shall be deemed to prevent the University from making special provisions for the employment or admission of women, physically handicapped or of persons belonging to the weaker sections of the society and, in particular, of the Scheduled Castes and the Scheduled Tribes.

10. The Visitor.—(*1*) The President of India shall be the Visitor of the University.

(*2*) The Visitor may, from time to time, appoint one or more persons to review the work and progress of the University, including the colleges and institutions maintained by it, and to submit a report thereon; and upon receipt of such report, the Visitor may, after obtaining the views of the Executive Council thereon through the Vice-Chancellor, take such action and issue such directions as he considers necessary in respect of any of the matters dealt with in the report and the University shall be bound to comply with such directions.

(*3*) The Visitor shall have the right to cause an inspection to be made, by such person or persons as he may direct, of the University, its buildings, libraries, laboratories and equipment, and of any college or institution maintained by the University or admitted to its privileges; and also of the examinations, teaching and other work conducted or done by the University and to cause an inquiry to be made in like manner in respect of any matter connected with the administration or finances of the University, and the said colleges and institutions.

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(*4*) The Visitor shall, in every matter referred to in sub-section (*3*), give notice of his intention to cause an inspection or inquiry to be made—

(*a*) to the University, if such inspection or inquiry is to be made in respect of the University or any college or institution maintained by it, or

(*b*) to the Management of the college or institution, if the inspection or inquiry is to be made in respect of a college or institution admitted to the privileges of the University, and the University or the Management, as the case may be, shall have the right to make such representations to the Visitor, as it may consider necessary.

(*5*) After considering the representations, if any, made by the University or the Management, as the case may be, the Visitor may cause to be made such inspection or inquiry as is referred to in sub-section (*3*).

(*6*) Where any inspection or inquiry has been caused to be made by the Visitor, the University or the Management shall be entitled to appoint a representative, who shall have the right to be present and be heard at such inspection or inquiry.

(*7*) The Visitor may, if the inspection or inquiry is made in respect of the University or any college or institution maintained by it, address the Vice-Chancellor with reference to the result of such inspection or inquiry together with such views and advice with regard to the action to be taken thereon, as the Visitor may be pleased to offer, and on receipt of address made by the Visitor, the Vice-Chancellor shall communicate to the Executive Council, the views of the Visitor with such advice as the Visitor may offer upon the action to be taken thereon.

(*8*) The Visitor may, if the inspection or inquiry is made in respect of any college or institution admitted to the privileges of the University, address the Management concerned through the Vice-Chancellor with reference to the result of such inspection or inquiry, his views thereon and such advice as he may be pleased to offer upon the action to be taken thereon.

(*9*) The Executive Council or the Management, as the case may be, communicate, through the Vice-Chancellor to the Visitor such action, if any, as it proposes to take or has been taken upon the result of such inspection or inquiry.

(*10*) Where, the Executive Council or the Management, as the case may be, does not, within a reasonable time, take action to the satisfaction of the Visitor, the Visitor may, after considering any explanation furnished or representation made by the Executive Council or the Management, issue such directions as he may think fit and the Executive Council or the Management, as the case may be, shall comply with such directions.

(*11*) Without prejudice to the foregoing provisions of this section, the Visitor may, by order in writing, annul any proceeding of the University which is not in conformity with the Act or the Statutes or the Ordinances:

Provided that before making any such order, the Visitor shall call upon the Registrar to show cause why such an order should not be made, and, if any cause is shown within a reasonable time, he shall consider the same.

(*12*) The Visitor shall have such other powers as may be prescribed by the Statutes.

11. The Chief Rector.—The Governor of the State of Uttar Pradesh shall be the Chief Rector of the University.

12. Officers of University.—The following shall be the officers of the University,—

(*1*) the Chancellor;

(*2*) the Vice-Chancellor;

(*3*) the Pro-Vice-Chancellor;

(*4*) the Deans of Faculties;

(*5*) the Registrar;

(*6*) the Finance Officer; and

(*7*) such other officers as may be declared by the Statutes to be officers of the University.

13. The Chancellor.—(*1*) The Chancellor shall be appointed by the Visitor in such manner as may be prescribed by the Statutes.

(*2*) The Chancellor shall, by virtue of his office, be the head of the University and shall, if present, preside at the Convocations of the University held for conferring degrees and meetings of the Court.

14. The Vice-Chancellor.—(*1*) The Vice-Chancellor shall be appointed by the Visitor in such manner and on such terms and conditions of service as may be prescribed by the Statutes.

(*2*) The Vice-Chancellor shall be the principal executive and academic officer of the University and shall exercise general supervision and control over the affairs of the University and give effect to the decisions of all the authorities of the University.

(*3*) The Vice-Chancellor may, if he is of the opinion that immediate action is necessary on any matter, exercise any power conferred on any authority of the University by or under this Act and shall report to such authority at its next meeting the action taken by him on such matter:

Provided that such exercise of power shall be made only in emergent situations and in no case in respect of creation, and upgradation of posts and appointments thereto:

Provided further that if the authority concerned is of the opinion that such action ought not to have been taken, it may refer the matter to the Visitor whose decision thereon shall be final:

Provided also that any person in the service of the University who is aggrieved by the action taken by the Vice-Chancellor under this sub-section shall have the right to appeal against such action to the Executive Council within three months from the date on which decision on such action is communicated to him and thereupon the Executive Council may confirm, modify or reverse the action taken by the Vice-Chancellor.

(*4*) The Vice-Chancellor, if he is of the opinion that any decision of any authority of the University is beyond the powers of the authority conferred by the provisions of this Act, the Statutes or the Ordinances or that any decision taken is not in the interest of the University, may ask the authority concerned to review its decision within sixty days of such decision and if the authority refuses to review the decision either in whole or in part or no decision is taken by it within the said period of sixty days, the matter shall be referred to the Visitor whose decision thereon shall be final.

(*5*) The Vice-Chancellor shall exercise such other powers and perform such other duties as may be prescribed by the Statutes or the Ordinances.

15. The Pro-Vice-Chancellor.—The Pro-Vice-Chancellor shall be appointed in such manner and on such terms and conditions of service, and shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

16. The Deans of Faculties.—Every Dean of Faculty shall be appointed in such manner and shall exercise such powers and perform such duties as may be prescribed by the Statutes.

17. The Registrar.—(*1*) The Registrar shall be appointed in such manner and on such terms and conditions of service as may be prescribed by the Statutes.

(*2*) The Registrar shall have the power to enter into agreements, sign documents and authenticate records on behalf of the University and shall exercise such powers and perform such duties as may be prescribed by the Statutes.

18. The Finance Officer.—The Finance Officer shall be appointed in such manner and on such terms and conditions of service, and shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

19. Other officers.—The manner of appointment and powers and duties of other officers of the University shall be prescribed by the Statutes.

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20. Authorities of University.—The following shall be the authorities of the University,—

(*1*) the Court;

(*2*) the Executive Council;

(*3*) the Academic Council;

(*4*) the Boards of Faculties;

(*5*) the Finance Committee; and

(*6*) such other authorities as may be declared by the Statutes to be authorities of the University.

21. The Court.—(*1*) The constitution of the Court and the term of office of its members shall be prescribed by the Statutes.

(*2*) Subject to the provisions of this Act, the Court shall have the following powers and functions, namely:—

(*a*) to review, from time to time, the broad policies and programmes of the University and to suggest measures for the improvement and development of the University;

(*b*) to consider and pass resolutions on the annual report and annual accounts of the University and the audit report on such accounts;

(*c*) to advise the Visitor in respect of any matter which may be referred to it for advice; and

(*d*) to perform such other functions as may be prescribed by the Statutes.

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22. The Executive Council.—(*1*) The Executive Council shall be the principal executive body of the University.

(*2*) The constitution of the Executive Council, the term of office of its members and its powers and functions shall be prescribed by the Statutes.

23. The Academic Council.—(*1*) The Academic Council shall be the principal academic body of the University and shall, subject to the provisions of this Act, the Statutes and the Ordinances, co-ordinate and exercise general supervision over the academic policies of the University.

(*2*) The constitution of the Academic Council, the term of office of its members and its powers and functions shall be prescribed by the Statutes.

24. The Finance Committee.—The constitution, powers and functions of the Finance Committee shall be prescribed by the Statutes.

25. Other authorities.—The constitution, powers and functions of the Boards of Faculties and such other authorities as may be declared by the Statutes to be authorities of the University shall be prescribed by the Statutes.

26. The Faculties and Departments.—(*1*) The University shall have such Faculties as are prescribed by the Statutes.

(*2*) Each Faculty shall have such Departments as are prescribed by the Statutes, and each Department shall have such subjects of study as may be assigned to it by the Ordinances.

27. Power to make Statutes.—Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:—

(*a*) the constitution, powers and functions of the authorities and other bodies of the University as may be constituted from time to time;

(*b*) the appointment and continuance in office of the members of the said authorities and bodies, the filling up of vacancies of members, and all other matters relating to those authorities and other bodies for which it may be necessary or desirable to provide;

(*c*) the appointment, powers and duties of the officers of the University and their emoluments and conditions of service;

(*d*) the appointment of teachers, academic staff and other employees of the University, their emoluments and conditions of service;

(*e*) the recognition of persons as University recognised teachers;

(*f*) the declaration of persons working in other Universities or other organisations as teachers of the University for a specified period;

(*g*) the conditions of service of employees of the University including provisions for pension, insurance and provident fund, the manner of termination of service and disciplinary action relating to such employees;

(*h*) the principles governing the seniority of service of the employees of the University;

(*i*) the procedure for arbitration in cases of dispute between employees or students and the University;

(*j*) the procedure for appeal to the Executive Council by any employee or student against the action of any officer or authority of the University;

(*k*) the conditions under which colleges and institutions may be admitted to the privileges of the University and the withdrawal of such privileges;

(*l*) the establishment and abolition of Faculties, Departments, University Institutes, Centres and University Colleges;

(*m*) the conferment of autonomous status on a college or institution or a Department and the withdrawal of such status;

(*n*) the conferment of honorary degrees;

(*o*) the withdrawal of degrees, diplomas, certificates and other academic distinctions;

(*p*) the registration of graduates;

(*q*) the delegation of powers vested in the authorities or officers of the University;

(*r*) the maintenance of discipline among the employees and students; and

(*s*) all other matters which by this Act are to be or may be provided for by the Statutes.

28. Statutes, how to be made.—(*1*) The First Statutes are those set out in the Schedule.

(*2*) The Executive Council may, from time to time, make new or additional Statutes or may amend or repeal the Statutes referred to in sub-section (*1*):

Provided that the Executive Council shall not make, amend or repeal any Statute affecting the status, powers or constitution of any authority of the University until such authority has been given an opportunity of expressing an opinion in writing on the proposed changes, and any opinion so expressed shall be considered by the Executive Council.

(*3*) Every new Statute or addition to the Statutes or any amendment or repeal of a Statute shall require the assent of the Visitor who may assent thereto or withhold assent or remit to the Executive Council for re-consideration.

(*4*) A new Statute or a Statute amending or repealing an existing Statute shall have no validity unless it has been assented to by the Visitor.

(*5*) Notwithstanding anything contained in the foregoing sub-sections, the Visitor may make new or additional Statutes, or amend or repeal the Statutes referred to in sub-section (*1*), during the period of three years immediately after the commencement of this Act:

Provided that the Visitor may, on the expiry of the said period of three years, make, within one year from the date of such expiry, such detailed Statutes as he may consider necessary and such detailed Statutes shall be laid before both Houses of Parliament.

(*6*) Notwithstanding anything contained in this section, the Visitor may direct the University to make provisions in the Statutes in respect of any matter specified by him and if the Executive Council is unable to implement such direction within sixty days of its receipt, the Visitor may, after considering the reasons,

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if any, communicated by the Executive Council for its inability to comply with such direction, make or amend the Statutes suitably.

29. Power to make Ordinances.—(*1*) Subject to the provisions of this Act and the Statutes, the Ordinances may provide for all or any of the following matters, namely:—

(*a*) the admission and enrolment of students to the University and institutions maintained by or admitted to the privileges of the University;

(*b*) the courses of study to be laid down for all degrees, diplomas and certificates of the University;

(*c*) the medium of instruction and examination;

(*d*) the award of degrees, diplomas, certificates and other academic distinctions, the qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

(*e*) the fees to be charged for courses of study in the University and for admission to the examinations, degrees and diplomas of the University;

(*f*) the institution of, and conditions for award of fellowships, scholarships, studentships, medals and prizes;

(*g*) the conduct of examinations, including the term of office and manner of appointment and the duties of examining bodies, examiners and moderators;

(*h*) the conditions of residence of students of the University;

(*i*) the special arrangements, if any, which may be made for the residence, discipline and teaching of women students and the prescribing of special courses of studies for them;

(*j*) the establishment of Centres, University Institutes, Boards of Studies, Specialised Laboratories and Committees;

(*k*) the creation, composition and functions of any other body which is considered necessary for improving the academic life of the University;

(*l*) the manner of co-operation and collaboration with other Universities, Institutions and other Agencies including learned bodies or associations;

(*m*) the setting up of a machinery for redressal of grievances of employees; and

(*n*) all other matters which by this Act or the Statutes, are to be or may be, provided for by the Ordinances.

(*2*) The first Ordinances shall be made by the Vice-Chancellor with the previous approval of the Central Government and the Ordinances so made may be amended, repealed or added to at any time by the Executive Council in the manner prescribed by the Statutes.

30. Regulations.—The authorities of the University may make Regulations consistent with this Act, the Statutes and the Ordinances for the conduct of their own business and that of the Committees, if any, appointed by them and not provided for by this Act, the Statutes or the Ordinances and for such matters as may be prescribed by the Statutes or the Ordinances.

31. Annual report.—(*1*) The annual report of the University shall be prepared under the direction of the Executive Council, which shall include, among other matters, the steps taken by the University towards the fulfilment of its objects and shall be submitted to the Court on or after such date as may be prescribed by the Statutes and the Court shall consider the report in its annual meeting.

(*2*) The Court shall submit the annual report to the Visitor along with its comments, if any.

(*3*) A copy of the annual report, as prepared under sub-section (*1*), shall also be submitted to the Central Government, which shall, as soon as may be, cause the same to be laid before both Houses of Parliament.

32. Accounts and audit.—(*1*) The annual accounts and balance sheet of the University shall be prepared under the directions of the Executive Council and shall once at least every year, and at intervals

of not more than fifteen months, be audited by the Comptroller and Auditor-General of India or by such persons as he may authorise in this behalf.

(*2*) A copy of the annual accounts together with the audit report thereon shall be submitted to the Court and the Visitor along with the observations of the Executive Council.

(*3*) Any observations made by the Visitor on the annual accounts shall be brought to the notice of the Court and the observations of the Court, if any, shall, after being considered by the Executive Council, be submitted to the Visitor.

(*4*) A copy of the annual accounts together with the audit report as submitted to the Visitor, shall also be submitted to the Central Government, which shall, as soon as may be, cause the same to be laid before both Houses of Parliament.

(*5*) The audited annual accounts after having been laid before both Houses of Parliament shall be published in the Gazette of India.

33. Furnishing returns, etc.—The University shall furnish to the Central Government such returns or other information with respect to its property or activities as the Central Government may, from time to time, require.

34. Conditions of service of employees.—(*1*) Every employee of the University shall be appointed under a written contract, which shall be lodged with the University and a copy of which shall be furnished to the employee concerned.

(*2*) Any dispute arising out of the contract between the University and any employee shall, at the request of the employee, be referred to a Tribunal of Arbitration consisting of one member appointed by the Executive Council, one member nominated by the employee concerned and an umpire appointed by the Visitor.

(*3*) The decision of the Tribunal shall be final and no suit shall lie in any civil court in respect of the matters decided by the Tribunal.

(*4*) Every request made by the employee under sub-section (*2*), shall be deemed to be a submission to arbitration upon the terms of this section within the meaning of the Arbitration and Conciliation Act, 1996 (26 of 1996).

(*5*) The procedure for regulating the work of the Tribunal shall be prescribed by the Statutes.

35. Procedure of appeal and arbitration in disciplinary cases against students.—(*1*) Any student or candidate for an examination whose name has been removed from the rolls of the University by the orders or resolution of the Vice-Chancellor, Discipline Committee or Examination Committee, as the case may be, and who has been debarred from appearing at the examinations of the University for more than one year, may, within ten days of the date of receipt of such orders or copy of such resolution by him, appeal to the Executive Council and the Executive Council may confirm, modify or reverse the decision of the Vice-Chancellor or the Committee, as the case may be.

(*2*) Any dispute arising out of any disciplinary action taken by the University against a student shall, at the request of such student, be referred to a Tribunal of Arbitration and the provisions of sub-sections (*2*), (*3*), (*4*) and (*5*) of section 34 shall, as far as may be, apply to a reference made under this sub-section.

36. Right to appeal.—Every employee or student of the University or of an Institution maintained by the University or admitted to its privileges shall, notwithstanding anything contained in this Act, have a right to appeal within such time as may be prescribed by the Statutes, to the Executive Council against the decision of any officer or authority of the University, and thereupon the Executive Council may confirm, modify or reverse the decision appealed against.

37. Provident and pension funds.—(*1*) The University shall constitute for the benefit of its employees such provident fund or pension fund or provide such insurance schemes as it may deem fit in such manner and subject to such conditions as may be prescribed by the Statutes.

(*2*) Where such provident fund or pension fund has been so constituted, the Central Government may declare that the provisions of the Provident Funds Act, 1925 (19 of 1925), shall apply to such fund as if it were a Government provident fund.

38. Disputes as to constitution of University authorities and bodies.—If any question arises as to whether any person has been duly appointed or elected as, or is entitled to be, a member of any authority or other body of the University, the matter shall be referred to the Visitor whose decision thereon shall be final.

39. Filling of casual vacancies.—All casual vacancies among the members, other than *ex officio* members, of any authority or other body of the University shall be filled, as soon as may be, by the person or body who appoints, elects or co-opts the member whose place has become vacant and person appointed, elected or co-opted to a casual vacancy shall be a member of such authority or body for the residue of the term for which the person whose place he fills would have been member.

40. Proceedings of University authorities or bodies not invalidated by vacancies.—No act or proceedings of any authority or other body of the University shall be invalid merely by reason of the existence of a vacancy or vacancies among its members.

41. Protection of action taken in good faith.—No suit or other legal proceeding shall lie against any officer or other employee of the University for anything which is in good faith done or intended to be done in pursuance of any of the provisions of this Act, the Statutes or the Ordinances.

42. Mode of proof of University record.—Notwithstanding anything contained in the Indian Evidence Act, 1872 (1 of 1872) or in any other law for the time being in force, a copy of any receipt, application, notice, order, proceeding or resolution of any authority or other body of the University, or any other document in possession of the University, or any entry in any register duly maintained by the University, if certified by the Registrar, shall be received as *prima facie* evidence of such receipt, application, notice, order, proceeding, resolution or document or the existence of entry in the register and shall be admitted as evidence of the matters and transactions therein where the original thereof would, if produced, have been admissible in evidence.

43. Power to remove difficulties.—(*1*) If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions, not inconsistent with the provisions of this Act, as appear to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made under this section after the expiry of three years from the commencement of this Act.

(*2*) Every order made under sub-section (*1*) shall be laid, as soon as may be after it is made, before each House of Parliament while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the order or both Houses agree that the order should not be made, the order shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that order.

44. Statutes, Ordinances and Regulations to be published in the Official Gazette and to be laid before Parliament.—(*1*) Every Statute, Ordinance or Regulation made under this Act shall be published in the Official Gazette.

(*2*) Every Statute, Ordinance or Regulation made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute, Ordinance or Regulation or both Houses agree that the Statute, Ordinance or Regulation should not be made, the Statute, Ordinance or Regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statute, Ordinance or Regulation.

(*3*) The power to make Statutes, Ordinances or Regulations shall include the power to give retrospective effect, from a date not earlier than the date of commencement of this Act, to the Statute, Ordinance or Regulation or any of them but no retrospective effect shall be given to any Statute, Ordinance or Regulation so as to prejudicially affect the interests of any person to whom such Statute, Ordinance or Regulation may be applicable.

45. Transitional provisions.—(*1*) Notwithstanding anything contained in this Act and the Statutes,—

(*a*) the first Chancellor and the first Vice-Chancellor shall be appointed by the Central Government in such manner and on such conditions as may be deemed fit and each of the said officers shall hold office for such term, not exceeding five years, as may be specified by the Central Government;

(*b*) the first Registrar and the first Finance Officer shall be appointed by the Central Government and each of the said officers shall hold office for a term of three years;

(*c*) the first Court and the first Executive Council shall consist of not more than thirty-one members and fifteen members, respectively, who shall be nominated by the Central Government and shall hold office for a term of three years;

(*d*) the first Academic Council shall consist of not more than thirty-one members, who shall be nominated by the Central Government and shall hold office for a term of three years:

Provided that if any vacancy occurs in the above-mentioned offices or authorities, the same shall be filled by appointment or nomination, as the case may be, by the Central Government, and the person so appointed or nominated shall hold office for so long as the officer or member in whose place he is appointed or nominated would have held office if such vacancy had not occurred.

(*2*) Till such time as the first Ordinances are not made under sub-section (*2*) of section 29, in respect of the matters that are to be provided for by the Ordinances under this Act and Statutes, the relevant provisions of the Statutes and the Ordinances made immediately before the commencement of this Act under the provisions of the Uttar Pradesh State Universities Act, 1973 (President's Act 10 of 1973) shall be applicable insofar as they are not inconsistent with the provisions of this Act and the Statutes.

46. Amendment of President's Act 10 of 1973.—(*1*) In the Uttar Pradesh State Universities Act, 1973,—

(*a*) the word "Allahabad", except in clause (*b*) of sub-section (*2*) of section 12, sub-section (*1*) of section 31B, clause (*b*) of sub-section (*1*) of section 74, clause (*j*) of sub-section (*3*) of section 74, and entries relating to Serial No. 5 in the Schedule, wherever it occurs, shall be omitted;

(*b*) in the Schedule, Serial No. 2 and the entries relating thereto shall be omitted.

(*2*) Notwithstanding such omission,—

(*a*) all appointments made, orders issued, degrees and other academic distinctions conferred, diplomas and certificates awarded, privileges granted, or other things done (including the registration of graduates) under the Uttar Pradesh State Universities Act, 1973 (President's Act 10 of 1973), shall be deemed to have been respectively made, issued, conferred, awarded, granted or done under the corresponding provisions of this Act and, except as otherwise provided by or this Act or the Statutes, continue in force unless and until they are superseded by any order made under this Act or the Statutes; and

(*b*) all proceedings of Selection Committees for the appointment or promotion of teachers that took place before the commencement of this Act and all actions of the Executive Council in respect of the recommendations of such Selection Committees where no orders of appointment on the basis thereof were passed before the commencement of this Act shall, notwithstanding that the procedure for selection has been modified by this Act, be deemed to have been valid but further proceeding in connection with such pending selections shall be taken in accordance with the provisions of this Act and be continued from the stage where they stood immediately before such commencement, except if the concerned authorities take, with the approval of the Visitor, a decision to the contrary.

THE SCHEDULE

(*see* section 28)

THE STATUTES OF THE UNIVERSITY

1. The Chancellor.—(*1*) The Chancellor shall be appointed by the Visitor from a panel of not less than three persons recommended by the Executive Council from amongst persons of eminence in the academic or public life of the country:

Provided that if the Visitor does not approve of any of the persons so recommended, he may call for fresh recommendations from the Executive Council.

(*2*) The Chancellor shall hold office for a term of five years and shall not be eligible for re-appointment:

Provided that notwithstanding the expiry of his term of office the Chancellor shall continue to hold office until his successor enters upon his office.

2. The Vice-Chancellor.—(*1*) The Vice-Chancellor shall be appointed by the Visitor from a panel of not less than three persons who shall be recommended by a Committee as constituted under clause (*2*):

Provided that if the Visitor does not approve of any of the persons included in the panel, he may call for an extended or a fresh panel.

(*2*) The Committee referred to in clause (*1*) shall consist of three persons, out of whom two shall be nominated by the Executive Council and one by the Visitor and the nominee of the Visitor shall be the convener of the Committee:

Provided that none of the members of the Committee shall be an employee of the University or an institution maintained by, or admitted to the privileges of, the University or a member of any authority of the University.

(*3*) The Vice-Chancellor shall be a whole-time salaried officer of the University.

(*4*) The Vice-Chancellor shall hold office for a term of five years from the date on which he enters upon his office, or until he attains the age of sixty-five years, whichever is earlier, and he shall not be eligible for re-appointment:

Provided that notwithstanding the expiry of the said period of five years, he shall continue in office until his successor is appointed and enters upon his office:

Provided further that the Visitor may direct any Vice-Chancellor after his term has expired, to continue in office for such period, not exceeding a total period of one year, as may be specified by him or till his successor is appointed and enters upon his office, whichever is earlier.

(*5*) The emoluments and other conditions of service of the Vice-Chancellor shall be as follows:—

(*i*) the Vice-Chancellor shall be paid a monthly salary and allowances, other than house rent allowance, at the rates fixed by the Central Government from time to time and he shall be entitled, without payment of rent, to use a furnished residence throughout his term of office and no charge shall fall on the Vice-Chancellor in respect of the maintenance of such residence;

(*ii*) the Vice-Chancellor shall be entitled to such terminal benefits and allowances as may be fixed by the Central Government from time to time:

Provided that where an employee of the University, or a college or an institution maintained by, or admitted to the privileges of, the University, or of any other University or any college or institution maintained by or admitted to the privileges of, such other University, is appointed as the Vice-Chancellor, he may be allowed to continue to contribute to any provident fund of which he is a member and the University shall contribute to the account of such person in that provident fund at the same rate at which the person had been contributing immediately before his appointment as the Vice-Chancellor:

Provided further that where such employee had been member of any pension scheme, the University shall make the necessary contribution to such scheme;

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(*iii*) the Vice-Chancellor shall be entitled to travelling allowance at such rates as may be fixed by the Executive Council;

(*iv*) the Vice-Chancellor shall be entitled to leave on full pay at the rate of thirty days in a calendar year and the leave shall be credited to his account in advance in two half-yearly instalments of fifteen days each on the first day of January and July every year:

Provided that if the Vice-Chancellor assumes or relinquishes charge of the office of the Vice-Chancellor during the currency of a half year, the leave shall be credited proportionately at the rate of two and-a-half days for each completed month of service;

(*v*) in addition to the leave referred to in sub-clause (*iv*), the Vice-Chancellor shall also be entitled to half-pay leave at the rate of twenty days for each completed year of service, and half-pay leave may also be availed of as commuted leave on full pay on medical certificate:

Provided that when such commuted leave is availed of, twice the amount of half-pay leave shall be debited against half-pay leave due.

(*6*) If the office of the Vice-Chancellor becomes vacant due to death, resignation or otherwise, or if he is unable to perform his duties due to ill-health or any other cause, the Pro-Vice-Chancellor shall perform the duties of the Vice-Chancellor:

Provided that if the Pro-Vice-Chancellor is not available, the senior most Professor shall perform the duties of the Vice-Chancellor until a new Vice-Chancellor assumes office or until the existing Vice-Chancellor resumes the duties of his office, as the case may be.

3. Powers and duties of the Vice-Chancellor.—(*1*) The Vice-Chancellor shall be *ex officio* Chairman of the Executive Council, the Academic Council and the Finance Committee and shall, in the absence of the Chancellor, preside at the Convocations held for conferring degrees and at meetings of the Court.

(*2*) The Vice-Chancellor shall be entitled to be present at, and address, any meeting of any authority or other body of the University, but shall not be entitled to vote thereat unless he is a member of such authority or body.

(*3*) It shall be the duty of the Vice-Chancellor to see that this Act, the Statutes, the Ordinances and the Regulations are duly observed and he shall have all the powers necessary to ensure such observance.

(*4*) The Vice-Chancellor shall have all the powers necessary for the proper maintenance of discipline in the University and he may delegate any such powers to such person or persons as he deems fit.

(*5*) The Vice-Chancellor shall have the power to convene or cause to be convened the meetings of the Executive Council, the Academic Council and the Finance Committee.

4. Pro-Vice-Chancellor.—(*1*) The Pro-Vice-Chancellor shall be appointed by the Executive Council on the recommendation of the Vice-Chancellor:

Provided that where the recommendation of the Vice-Chancellor is not accepted by the Executive Council, the matter shall be referred to the Visitor who may either appoint the person recommended by the Vice-Chancellor or ask the Vice-Chancellor to recommend another person to the Executive Council:

Provided further that the Executive Council may, on the recommendation of the Vice-Chancellor, appoint a Professor to discharge the duties of a Pro-Vice-Chancellor in addition to his own duties as a Professor.

(*2*) The term of office of a Pro-Vice-Chancellor shall be such as may be decided by the Executive Council but it shall not in any case exceed five years or until the expiration of the term of office of the Vice-Chancellor, whichever is earlier:

Provided that a Pro-Vice-Chancellor whose term of office has expired shall be eligible for re-appointment:

Provided further that, in any case, a Pro-Vice-Chancellor shall retire on attaining the age of sixty-five years:

Provided also that a Pro-Vice-Chancellor shall, while discharging the duties of the Vice-Chancellor under clause (*6*) of Statute 1, continue in office notwithstanding the expiration of his term of office as Pro-Vice-Chancellor, until the Vice-Chancellor resumes office or a new Vice-Chancellor assumes office, as the case may be.

(*3*) The emoluments and other terms and conditions of service of a Pro-Vice-Chancellor shall be such as may be prescribed by the Ordinances.

(*4*) The Pro-Vice-Chancellor shall assist the Vice-Chancellor in respect of such matters as may be specified by the Vice-Chancellor in this behalf, from time to time, and shall also exercise such powers and perform such duties as may be assigned or delegated to him by the Vice-Chancellor.

5. Deans of Faculties.—(*1*) Every Dean of Faculty shall be appointed by the Vice-Chancellor from amongst the Professors in the Faculty by rotation in the order of seniority for a period of three years:

Provided that in case there is only one Professor or no Professor in a Faculty, the Dean shall be appointed, for the time being, from amongst the Professor, if any, and the Readers in the Faculty by rotation in the order of seniority:

Provided further that in the case of a Faculty comprising a University College, the Principal of such University College shall be the *ex officio* Dean of the Faculty.

(*2*) When the office of the Dean is vacant or when the Dean is, by reason of illness, absence or any other cause, unable to perform duties of his office, the duties of the office shall be performed by the senior-most Professor or Reader, as the case may be, in the Faculty.

(*3*) The Dean shall be the *ex officio* Chairman of the Board of the Faculty and shall be responsible for the conduct and maintenance of the standards of teaching and research in the Faculty and shall have such other functions as may be prescribed by the Ordinances.

(*4*) The Dean shall have the right to be present and to speak at any meeting of the Boards of Studies or Committees of the Faculty, but shall not have the right to vote thereat unless he is a member thereof.

(*5*) Notwithstanding anything contained in clause (*1*), every teacher serving as Dean of a Faculty immediately before the appointed day, shall continue as such up to the date on which he would have continued as Dean if the Act had not been enacted and thereafter the Dean of the concerned Faculty shall be appointed in accordance with the provisions of clause (*1*) above.

6. The Registrar.—(*1*) The Registrar shall be appointed by the Executive Council on the recommendation of a Selection Committee constituted for the purpose and shall be a whole-time salaried officer of the University.

(*2*) He shall be appointed for a term of five years and shall be eligible for re-appointment.

(*3*) The emoluments and other terms and conditions of service of the Registrar shall be such as may be prescribed by the Ordinances:

Provided that the Registrar shall retire on attaining the age of sixty-two years:

Provided further that a Registrar shall, notwithstanding his attaining the age of sixty-two years, continue in office until his successor is appointed and enters upon his office or until the expiry of a period of one year, whichever is earlier.

(*4*) When the office of the Registrar is vacant or when the Registrar is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(*5*) (*a*) The Registrar shall have power to take disciplinary action against such of the employees, excluding teachers and other academic staff, as may be specified in the order of the Executive Council and to suspend them pending inquiry, to administer warnings to them or to impose on them the penalty of censure or the withholding of increment:

Provided that no such penalty shall be imposed unless the person has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(*b*) An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in sub-clause (*a*).

(*c*) In a case where the inquiry discloses that a punishment beyond the power of the Registrar is called for, the Registrar shall, upon the concluding of the inquiry, make a report to the Vice-Chancellor along with his recommendations:

Provided that an appeal shall lie to the Executive Council against an order of the Vice-Chancellor imposing any penalty.

(*6*) The Registrar shall be *ex officio* Secretary of the Court, the Executive Council and the Academic Council, but shall not be deemed to be a member of any of these authorities.

(*7*) It shall be the duty of the Registrar—

(*a*) to be the custodian of the records, the common seal and such other property of the University as the Executive Council shall commit to his charge;

(*b*) to issue all notices convening meetings of the Court, the Executive Council, and the Academic Council, the college development council and of any Committees appointed by those authorities;

(*c*) to keep the minutes of all the meetings of the Court, the Executive Council and the Academic Council and of any Committees appointed by those authorities;

(*d*) to conduct the official correspondence of the Court, the Executive Council and the Academic Council;

(*e*) to arrange for and superintend the examinations of the University in the manner prescribed by the Ordinances;

(*f*) to supply to the Visitor copies of the agenda of the meetings of the authorities of the University as soon as they are issued and the minutes of such meetings;

(*g*) to represent the University in suits or proceedings by or against the University, sign powers of attorney and verify pleadings or depute his representative for the purpose; and

(*h*) to perform such other duties as may be specified in the Statutes, the Ordinances or the Regulations or as may be required from time to time by the Executive Council or the Vice-Chancellor.

7. The Finance Officer.—(*1*) The Finance Officer shall be appointed by the Executive Council on the recommendations of a Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(*2*) The Finance Officer shall be appointed for a term of five years and shall be eligible for re-appointment.

(*3*) The emoluments and other terms and conditions of service of the Finance Officer shall be such as may be prescribed by the Ordinances:

Provided that the Finance Officer shall retire on attaining the age of sixty years:

Provided further that the Finance Officer shall, notwithstanding his attaining the age of sixty years, continue in office until his successor is appointed and enters upon his office or until the expiry of a period of one year, whichever is earlier.

(*4*) When the office of the Finance Officer is vacant or when the Finance Officer is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(*5*) The Finance Officer shall be *ex officio* Secretary of the Finance Committee, but shall not be deemed to be a member of such Committee.

(*6*) The Finance Officer shall—

(*a*) exercise general supervision over the funds of the University and shall advise it as regards its financial policy; and

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(*b*) perform such other financial functions as may be assigned to him by the Executive Council or as may be prescribed by the Statutes or the Ordinances.

(*7*) Subject to the control of the Executive Council, the Finance Officer shall—

(*a*) hold and manage the property and investments of the University including trust and endowed property;

(*b*) ensure that the limits fixed by the Executive Council for recurring and non-recurring expenditure for a year are not exceeded and that all moneys are expended on the purpose for which they are granted or allotted;

(*c*) be responsible for the preparation of annual accounts and the budget of the University and for their presentation to the Executive Council;

(*d*) keep a constant watch on the state of the cash and bank balances and on the state of investments;

(*e*) watch the progress of the collection of revenue and advise on the methods of collection employed;

(*f*) ensure that the registers of buildings, land, furniture and equipment are maintained up-to-date and that stock-checking is conducted, of equipment and other consumable materials in all offices, Departments, University Institutes, Centres and Specialised Laboratories;

(*g*) bring to the notice of the Vice-Chancellor unauthorised expenditure and other financial irregularities and suggest disciplinary action against persons at fault; and

(*h*) call for from any office, Department, University Institute, independent Centre, Specialised Laboratory or User Facility maintained by the University any information or returns that he may consider necessary for the performance of his duties.

(*8*) Any receipt given by the Finance Officer or the person or persons duly authorised in this behalf by the Executive Council for any money payable to the University shall be sufficient discharge for payment of such money.

8. The Court.—(*1*) The Court shall consist of the following members, namely:—

(*a*) *Ex officio Members*

(*i*) the Chancellor;

(*ii*) the Vice-Chancellor;

(*iii*) the Pro-Vice-Chancellor, if any;

(*iv*) the members of the Executive Council other than the Vice-Chancellor, the Pro-Vice-Chancellor and the Deans of Faculties;

(*v*) the Deans of Faculties;

(*vi*) the Finance Officer;

(*vii*) the Dean of Research and Development, in case he is not a member under any other provision of this sub-clause;

(*viii*) the Dean of College Development, in case he is not a member under any other provision of this sub-clause;

(*ix*) the Librarian;

(*x*) such Heads of Departments, Directors of University Institutes, Directors of Constituent Institutes and Heads of Centres which are not comprised in any University Institute, as are not members under any other provision of this sub-clause; and

(*xi*) two Principals of Constituent Colleges, to be selected by rotation in the order of length of substantive service as Principals.

(*b*) *Representatives of the academic staff*

(*i*) five Professors, three Readers and three Lecturers from among the University appointed teachers of the Faculties, to be selected by rotation in the order of seniority;

(*ii*) one Professor, one Reader and one Lecturer from among the University recognised teachers of the University Colleges, to be selected by rotation in the order of seniority;

(*iii*) two Professors, two Readers and two Lecturers from among the teachers of the University Institutes, to be selected by rotation in the order of seniority;

(*iv*) two Professors, one Reader and one Lecturer from among the University recognised teachers of the Constituent Institutes, to be selected by rotation in the order of seniority; and

(*v*) six persons from among the University recognised teachers of the Constituent Colleges, to be selected by rotation in the order of seniority, of whom at least two shall be Lecturers.

(*c*) *Representatives of Students*

one student from each group of subjects assigned to the Faculties who, having secured the highest marks in that group of subjects at the preceding degree examination of the University, is pursuing a course of study for a Post-graduate degree in the same group of subjects in the University or in a college or institution maintained by the University or admitted to the privileges of the University:

Provided that a representative of students shall no longer continue as such representative on the termination of his enrolment as a student.

(*d*) *Representatives of Registered Graduates*

ten representatives of the registered Graduates, not being persons in the service or students of the University or an institution maintained by or admitted to the privileges of the University or a member of the management of such institution, to be co-opted by the Court in accordance with the procedure laid down in the Regulations.

(*e*) *Representatives of Parliament*

(*i*) three representatives of Parliament, two to be elected by the Lok Sabha from amongst its own members, in such manner as the Speaker may direct, and one to be elected by the Rajya Sabha from amongst its own members, in such manner as the Chairman may direct:

Provided that consequent upon a Member of Parliament becoming a Minister or Speaker/Deputy Speaker, Lok Sabha or Deputy Chairman, Rajya Sabha, his election to the Court shall be deemed to have been terminated.

(*f*) *Nominees of the Visitor, the Chief Rector and the Chancellor*

(*i*) seven persons representing learned professions and special interests, including representatives of Industry, Commerce, Labour and Agriculture, to be nominated by the Visitor;

(*ii*) two eminent educationists, to be nominated by the Chief Rector; and

(*iii*) three persons of distinction in public life, to be nominated by the Chancellor.

(*2*) The term of office of the members of the Court under sub-clauses (*a*), (*b*), (*e*) and (*f*) of clause (*1*) shall be three years and under sub-clauses (*c*) and (*d*) thereof shall be one year.

(*3*) An annual meeting of the Court shall be held on a date to be fixed by the Executive Council unless some other date has been fixed by the Court in respect of any year.

(*4*) At the annual meeting of the Court, a report on the working of the University during the previous year, together with a statement of the receipts and expenditure, the balance sheet as audited, and the financial estimates for the next year shall be presented.

(*5*) A copy of the statement of receipts and expenditure, the balance sheet and the financial estimates referred to in clause (*4*) shall be sent to every member of the Court at least seven days before the date of the annual meeting.

(*6*) Special meetings of the Court may be convened by the Executive Council or the Vice-Chancellor or if there is no Vice-Chancellor, the Pro-Vice-Chancellor or if there is no Pro-Vice-Chancellor, by the Registrar.

(*7*) Twenty-five members of the Court shall form a quorum for a meeting of the Court.

9. The Executive Council.—(*1*) The Executive Council shall consist of the following members, namely:—

(*a*) the Vice-Chancellor;

(*b*) the Pro-Vice-Chancellor, if any;

(*c*) three Deans of Faculties, to be selected by rotation in the order in which the Faculties are enumerated in clause (*1*) to Statute 14;

(*d*) one Director of a Constituent Institute, to be selected by rotation in the order of length of substantive service as such Director;

(*e*) one Principal of a Constituent College, to be selected by rotation in the order of length of substantive service as such Principal;

(*f*) two Professors, two Readers and two Lecturers from among the University appointed teachers, to be selected by rotation in the order of seniority;

(*g*) one person from among the University recognised teachers of University Colleges, to be selected by rotation in the order of seniority;

(*h*) two persons from among the University recognised teachers of Constituent Institutes, to be selected by rotation in the order of seniority, of whom at least one shall be a Lecturer;

(*i*) three persons from among the University recognised teachers of Constituent Colleges, to be selected by rotation in the order of seniority, of whom at least one shall be a Lecturer;

(*j*) four persons to be nominated by the Visitor;

(*k*) one person of academic eminence to be nominated by the Chief Rector; and

(*l*) one person of academic eminence to be nominated by the Chancellor.

(*2*) The term of office of members of the Executive Council under sub-clauses (*c*) to (*g*) of clause (*1*) shall be two years, and of members under sub-clauses (*h*) to (*j*) thereof shall be three years.

(*3*) No person shall continue to be a member of the Executive Council in more than one capacity, and whenever a person becomes such member in more than one capacity, he shall within two weeks thereof intimate to the Registrar in writing as to the capacity in which he desires to be such member and vacate the other seat, failing which the seat held by him earlier in point of time shall be deemed to have been vacated.

(*4*) Seven members of the Executive Council shall form a quorum for a meeting of the Executive Council.

10. Powers and functions of the Executive Council.—(*1*) The Executive Council shall have the power of management and administration of the revenues and property of the University and the conduct of all administrative affairs of the University not otherwise provided for.

(*2*) Subject to the provisions of the Act, the Statutes and the Ordinances, the Executive Council shall, in addition to all other powers vested in it, have the following powers, namely:—

(*i*) to create teaching and other academic posts, to determine the number and emoluments of such posts and to define the duties and conditions of service of Professors, Readers, Lecturers and other academic staff:

Provided that no action shall be taken by the Executive Council in respect of the number and qualifications of teachers and other academic staff otherwise than after consideration of the recommendations of the Academic Council;

(*ii*) to appoint such Professors, Readers, Lecturers and other academic staff, as may be necessary, and the Directors of University Institutes and Heads of independent Centres on the recommendation of the Selection Committee constituted for the purpose and to fill up temporary vacancies therein;

(*iii*) to recognise persons as University recognised teachers in the manner prescribed by the Ordinances;

(*iv*) to create administrative, ministerial and other necessary posts (including Chairs) and to make appointments thereto in the manner prescribed by the Ordinances;

(*v*) to grant leave of absence to any salaried officer of the University other than the Vice-Chancellor, and to make necessary arrangements for the discharge of the functions of such officer during his absence;

(*vi*) to regulate and enforce discipline among employees in accordance with the Statutes and the Ordinances;

(*vii*) to manage and regulate the finances, accounts, investments, property, business and all other administrative affairs of the University and for that purpose to appoint such agents as it may think fit;

(*viii*) to fix limits on the total recurring and the total non-recurring expenditure for a year on the recommendation of the Finance Committee;

(*ix*) to invest any money belonging to the University, including any unapplied income, in such stocks, funds, share or securities, from time to time as it may think fit or in the purchase of immovable property in India, with the like powers of varying such investment from time to time;

(*x*) to transfer or accept transfers of any movable or immovable property on behalf of the University;

(*xi*) to provide buildings, premises, furniture and apparatus and other means needed for carrying on the work of the University;

(*xii*) to enter into, vary, carry out and cancel contracts on behalf of the University;

(*xiii*) to entertain, adjudicate upon, and if thought fit, to redress any grievances of the employees and students of the University who may, for any reason, feel aggrieved;

(*xiv*) to appoint examiners and moderators and, if necessary, to remove them, and to fix their fees, emoluments and travelling and other allowances, after consulting the Academic Council;

(*xv*) to select a common seal for the University and provide for the custody and use of such seal;

(*xvi*) to make such special arrangements as may be necessary for the residence and discipline of women students;

(*xvii*) to institute fellowships, scholarships, studentships, medals and prizes;

(*xviii*) to provide for the appointment of Visiting Professors, Emeritus Professors, Consultants and Scholars and determine the terms and conditions of such appointments; and

(*xix*) to exercise such other powers and perform such other duties as may be conferred or imposed on it by the Act or the Statutes.

11. The Academic Council.—(*1*) The Academic Council shall consist of the following members, namely:—

(*a*) the Vice-Chancellor;

(*b*) the Pro-Vice-Chancellor, if any;

(*c*) the Deans of the Faculties;

(*d*) the Dean of Research and Development;

(*e*) the Dean of Students Welfare;

(*f*) the Dean of College Development;

(*g*) the Librarian;

(*h*) such Heads of Departments, Directors of University Institutes and Heads of Centres not comprised in any University Institute, as are not members under sub-clauses (*b*) to (*f*):

Provided that where a subject assigned to any Faculty is not placed under any Department, the Chairman of the Board of Studies of the subject shall be a member of the Academic Council in case he is not already a member under sub-clauses (*b*) to (*g*);

(*i*) one Professor, one Reader and one Lecturer from each Faculty, selected by rotation in the order of seniority of Professors, Readers or Lecturers, as the case may be, of the concerned Faculty;

(*j*) the Directors of Constituent Institutes;

(*k*) one Professor (not being Director) of each Constituent Institute, selected by rotation in the order of seniority;

(*l*) two Principals of Constituent Colleges, selected by rotation in the order of length of substantive service as Principal;

(*m*) two members of the academic staff (not being Principals) of Constituent Colleges from each group of subjects assigned to a Faculty of the University, selected by rotation in the order of seniority as such members of the academic staff of the concerned group of subjects; and

(*n*) five persons, not being persons of academic excellence in the service of the University or a college or an institution admitted to the privileges of the University, to be co-opted by the Academic Council.

(*2*) The term of office of members (other than *ex officio* members) of the Academic Council shall be three years.

(*3*) Twenty-five members of the Academic Council shall form a quorum for a meeting of the Academic Council.

12. Powers and functions of the Academic Council.—Subject to the provisions of the Act, the Statutes and the Ordinances, the Academic Council shall, in addition to all other powers vested in it, have the following powers, namely:—

(*a*) to exercise general supervision over the academic policies of the University and to give directions regarding methods of instruction, co-ordination of teaching among the Constituent Colleges, evaluation of research and maintenance and improvement of academic standards;

(*b*) to promote co-ordination between Faculties, Departments, University Institutes and independent Centres, collaboration between the University and Constituent Institutes and establish such committees, boards or schools as may be deemed necessary for these purposes;

(*c*) to consider matters of general academic interest either on its own initiative, or on a reference by a Faculty, University Institute, independent Centre or Constituent Institute or the Executive Council, and to take appropriate action thereon;

(*d*) to advise the Executive Council on all academic matters, including—

(*i*) matters relating to the examinations conducted by the University;

(*ii*) the qualifications required to be possessed by persons imparting instruction in particular subjects for the degrees of the University; and

(*iii*) matters referred to it for advice by the Executive Council;

(*e*) to consider and approve proposals submitted by the Boards of Studies through the Boards of Faculties or by University Institutes or independent Centres or Constituent Institutes in respect of courses of study and research degree programmes;

(*f*) to recommend for the consideration of the Executive Council the principles and criteria on which examiners and Inspectors for various kinds of inspection of the University Colleges, Constituent Institutes and Constituent Colleges may be appointed; and

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(*g*) to frame such regulations and rules consistent with the Statutes and the Ordinances regarding the academic functioning of the University, discipline, residence, admissions, award of fellowships, scholarships, studentships, medals and prizes, fees, concessions, corporate life and attendance.

13. The Finance Committee.—(*1*) The Finance Committee shall consist of the following members, namely:—

(*i*) the Vice-Chancellor;

(*ii*) the Pro-Vice-Chancellor;

(*iii*) three persons to be nominated by the Executive Council, out of whom at least one shall be a member of the Executive Council; and

(*iv*) three persons to be nominated by the Visitor.

(*2*) Five members of the Finance Committee shall form a quorum for a meeting of the Finance Committee.

(*3*) All the members of the Finance Committee, other than *ex officio* members, shall hold office for a term of three years.

(*4*) A member of the Finance Committee shall have the right to record a minute of dissent if he does not agree with any decision of the Finance Committee.

(*5*) The Finance Committee shall meet at least thrice every year to examine the accounts and to scrutinise proposals for expenditure.

(*6*) All proposals relating to creation of posts, and those items which have not been included in the Budget, shall be examined by the Finance Committee before they are considered by the Executive Council.

(*7*) The annual accounts and the financial estimates of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments and thereafter submitted to the Executive Council for approval.

(*8*) The Finance Committee shall recommend limits for the total recurring expenditure and the total non-recurring expenditure for the year, based on the income and resources of the University (which, in the case of productive works, may include the proceeds of loans).

14. Faculties and Departments.—(*1*) The University shall have the following Faculties, namely:—

(*i*) the Faculty of Arts;

(*ii*) the Faculty of Commerce;

(*iii*) the Faculty of Law;

(*iv*) the Faculty of Medicine; and

(*v*) the Faculty of Science.

(*2*) The constitution and term of office of members of the Board of each Faculty, its powers and functions and the provisions in respect of the meetings thereof shall be prescribed by the Ordinances:

Provided that the first Board of each Faculty shall be nominated by the Executive Council and shall hold office for a period of one year.

(*3*) The Faculty of Arts shall consist of the following Departments, namely:—

(*i*) Ancient History, Culture and Archaeology;

(*ii*) Anthropology;

(*iii*) Arabic and Persian;

(*iv*) Education;

(*v*) English and Modern European Languages;

(*vi*) Geography;

(*vii*) Hindi and Modern Indian Languages;

(*viii*) Journalism and Mass Communication;

(*ix*) Medieval and Modern History;

(*x*) Music and Performing Arts;

(*xi*) Philosophy;

(*xii*) Physical Education;

(*xiii*) Political Science;

(*xiv*) Psychology;

(*xv*) Sanskrit; Pali, Prakrit and Oriental Languages;

(*xvi*) Urdu; and

(*xvii*) Visual Arts.

(*4*) The Faculty of Commerce shall consist of the following Departments, namely:—

(*i*) Commerce and Business Administration; and

(*ii*) Economics.

(*5*) The Faculty of Law shall consist of the following Department, namely:—

Law.

(*6*) The Faculty of Medicine shall consist of the following Departments, namely:—

(*i*) Anaesthesia;

(*ii*) Anatomy;

(*iii*) Cardiology;

(*iv*) Ear, Nose and Throat;

(*v*) Forensic Medicine;

(*vi*) Medicine;

(*vii*) Microbiology;

(*viii*) Obstetrics and Gynaecology;

(*ix*) Ophthalmology;

(*x*) Orthopaedics;

(*xi*) Paediatrics;

(*xii*) Pathology and Bacteriology;

(*xiii*) Pharmacy;

(*xiv*) Pharmacology;

(*xv*) Physiology;

(*xvi*) Radiology;

(*xvii*) Social and Preventive Medicine;

(*xviii*) Surgery; and

(*xix*) Tuberculosis.

(*7*) The Faculty of Science shall consist of the following Departments, namely:—

(*i*) Botany;

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(*ii*) Bio-Chemistry;

(*iii*) Chemistry;

(*iv*) Defence and Strategic Studies;

(*v*) Earth and Planetary Sciences;

(*vi*) Electronics and Communication;

(*vii*) Home Science;

(*viii*) Mathematics;

(*ix*) Physics;

(*x*) Statistics; and

(*xi*) Zoology.

(*8*) Each Department shall be headed by a Head of the Department, whose manner of appointment, term of office and functions shall be prescribed by the Ordinances.

(*9*) Each Department shall have a Departmental Committee, the constitution, term of office of members and functions whereof shall be prescribed by the Ordinances.

(*10*) There shall be a Board of Studies for each subject, the constitution, term of office of members and functions whereof shall be prescribed by the Ordinances.

15. Selection Committees.—(*1*) There shall be Selection Committees for making recommendations to the Executive Council for appointment to the posts of Professor, Reader, Lecturer, Registrar, Finance Officer, Librarian and Directors of University Institutes and Heads of independent Centres maintained by the University.

(*2*) The Selection Committee for appointment to the posts specified in column 1 of the Table below shall consist of the Vice-Chancellor, a nominee of the Visitor and the persons specified in the corresponding entry in column 2 of the said Table:

TABLE

1	2
Professor/Reader	(i) The Dean of the Faculty. (ii) The Head of the Department. (iii) Three experts in the concerned subject/field, to be appointed by the Executive Council, out of the panel recommended by the Academic Council.
Lecturer	(i) The Dean of the Faculty/Head of the Department. (ii) Three experts in the concerned subject/field, to be appointed by the Executive Council, out of the panel recommended by the Academic Council.
Registrar/Finance Officer	(i) Two members of the Executive Council nominated by it. (ii) One person not in the service of the University or an institution maintained by, or admitted to, the privileges of the University, nominated by the Executive Council.
Librarian	(i) Three persons not in the service of the University or an institution maintained by, or admitted to, the privileges of the University, who have special knowledge of the subject of the Library Science/ Library Administration to be nominated by the Executive Council. (ii) One person not in the service of the University or an institution maintained by, or admitted to, the privileges of the University, nominated by the Executive Council.

1	2
Director of University Institute or Head of independent Centre maintained by the University.	Three experts in the concerned subject/field, to be appointed by the Executive Council, out of the panel recommended by the Academic Council.

Note : 1	Where the appointment is being made for an interdisciplinary project, the head of the project shall be deemed to be the Head of the Department concerned.
Note : 2	In the case of a University Institute, the Director and in the case of an independent Centre, the Head thereof shall be deemed to be the Head of the Department concerned.

(*3*) The Vice-Chancellor, or in his absence the Pro-Vice-Chancellor, shall convene and preside at the meeting of the Selection Committee:

Provided that the meeting of the Selection Committee shall be fixed after prior consultation with, and subject to the convenience of Visitor's nominee and the experts approved by the Executive Council.

(*4*) Four members, including at least two experts, must be present to form the quorum for a meeting of the Selection Committee.

(*5*) The procedure to be followed by the Selection Committee shall be laid down in the Ordinances.

(*6*) If the Executive Council is unable to accept the recommendations made by the Selection Committee, it shall record its reasons and submit the case to the Visitor for final orders.

(*7*) Appointments to temporary posts shall be made in the manner indicated below—

(*i*) If the temporary vacancy is for duration longer than one academic session, it shall be filled on the advice of the Selection Committee in accordance with the procedure indicated in the foregoing clauses:

Provided that if the Vice-Chancellor is satisfied that in the interests of work it is necessary to fill the vacancy, the appointment may be made on a purely temporary basis on the advice of a local Selection Committee referred to in sub-clause (*ii*) for a period not exceeding six months.

(*ii*) If the temporary vacancy is for a period less than a year, an appointment to such vacancy shall be made on the recommendation of a local Selection Committee consisting of the Dean of the Faculty concerned, the Head of the Department and a nominee of the Vice-Chancellor:

Provided that if the same person holds the offices of the Dean and the Head of the Department, the Selection Committee may contain two nominees of the Vice-Chancellor.

(*iii*) No teacher appointed temporarily on the advice of a local Selection Committee shall be continued in service on such temporary employment, unless he is subsequently selected by a regular Selection Committee, for temporary or permanent appointment.

(*iv*) Where a teacher has been appointed to a Department on the recommendation of a regular Selection Committee on a temporary post, and such post subsequently becomes permanently vacant or another permanent post of the same rank and grade becomes available in the same Department, the Executive Council may appoint such teacher on permanent basis in such Department without further reference to a regular Selection Committee.

16. Special mode of appointment.—(*1*) Notwithstanding anything contained in Statute 15, the Executive Council may invite a person of high academic distinction and professional attainments to accept a post of Professor or any other equivalent academic post in the University, on such terms and conditions as it deems fit and on the person agreeing to do so appoint him to the post.

(*2*) The Executive Council may declare a person working in any other University or organisation as teacher of the University for a specified period.

(*3*) Appointments to Chairs and of Emeritus Professors shall be made by the Executive Council in accordance with the procedure laid down in the Ordinances for such tenure and on such terms and conditions as it deems fit.

(*4*) The Executive Council may appoint a person selected in accordance with the procedure laid down in Statute 15 for a fixed tenure on such terms and conditions as it deems fit.

17. Academic staff.—(*1*) The academic staff shall consist of teachers and staff employed for imparting instruction or for conducting, or assisting in the conduct of, research.

(*2*) The manner of appointment of the academic staff, other than teachers, shall be such as may be prescribed by the Ordinances.

18. Recognition of teachers.—(*1*) The qualifications of University recognised teachers shall be such as may be determined by the Ordinances.

(*2*) All applications for the recognition of teachers shall be made in such manner as may be laid down by the Regulations made by the Executive Council in that behalf.

(*3*) The Executive Council may, on a reference from the Vice-Chancellor, withdraw recognition from a teacher:

Provided that the teacher or the college or institution concerned may, within a period of thirty days from the date of the order of withdrawal, appeal against the order to the Visitor whose decision shall be final.

19. Committees.—(*1*) Any authority of the University may appoint as many standing or special Committees as it may deem fit, and may appoint to such Committees persons who are not members of such authority.

(*2*) Any Committee appointed under clause (*1*) may deal with any subject delegated to it subject to subsequent confirmation by the authority appointing it.

20. Terms and conditions of service and code of conduct of the teachers, etc.—(*1*) All the teachers and other academic staff of the University shall, in the absence of any agreement to the contrary, be governed by the terms and conditions of service and code of conduct as are specified in the Statutes, the Ordinances and the Regulations.

(*2*) The emoluments of members of the academic staff shall be such as may be prescribed by the Ordinances.

(*3*) Every teacher and other member of the academic staff of the University shall be appointed on a written contract, the form of which shall be prescribed by the Ordinances.

(*4*) A copy of every contract referred to in clause (*3*) shall be deposited with the Registrar.

21. Terms and conditions of service and code of conduct of other employees.—(*1*) All the employees of the University, other than the academic staff, shall, in the absence of any contract to the contrary, be governed by the terms and conditions of service and code of conduct as are specified in the Statutes, the Ordinances and the Regulations.

(*2*) The manner of appointment and emoluments of employees, other than the academic staff, shall be such as may be prescribed by the Ordinances.

22. Seniority list.—(*1*) Whenever, in accordance with the Statutes, any person is to hold an office or be a member of an authority of the University by rotation according to seniority, such seniority shall be determined according to the length of continuous service of such person in his grade and in accordance with such other principles as the Executive Council may, from time to time, prescribe.

(*2*) It shall be the duty of the Registrar to prepare and maintain in respect of each class of persons to whom the provisions of these Statutes apply, a complete and up-to-date seniority list in accordance with the provisions of clause (*1*).

(*3*) If two or more persons have equal length of continuous service in a particular grade or the relative seniority of any person or persons is otherwise in doubt, the Registrar may, on his own motion and shall, at the request of any such person, submit the matter to the Executive Council whose decision thereon shall be final.

(*4*) The provisions of this Statute shall not affect the *inter se* seniority of the employees working in the University before the appointed day.

23. Removal of employees of the University.—(*1*) Where there is an allegation of misconduct against a member of the academic staff or other employee of the University, the Vice-Chancellor, in the case of such member of the academic staff, and the authority competent to appoint (hereinafter referred to as the appointing authority) in the case of other employee may, by order in writing, place such member of the academic staff or other employee, as the case may be, under suspension and shall forthwith report to the Executive Council the circumstances in which the order was made:

Provided that the Executive Council may, if it is of the opinion, that the circumstances of the case do not warrant the suspension of the member of the academic staff, revoke such order.

(*2*) Notwithstanding anything contained in the terms of the contract of appointment or of any other terms and conditions of service of the employees, the Executive Council in respect of the academic staff, and the appointing authority in respect of other employees, shall have the power to remove such member of the academic staff or other employee, as the case may be, on grounds of misconduct.

(*3*) Save as aforesaid, the Executive Council, or as the case may be, the appointing authority, shall not be entitled to remove any member of the academic staff or other employee except for a good cause and after giving three months' notice or on payment of three months' salary in lieu thereof.

(*4*) No teacher, member of the academic staff or other employee shall be removed under clause (*2*) or clause (*3*) unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(*5*) The removal of a member of the academic staff or other employee shall take effect from the date on which the order of removal is made:

Provided that where the teacher, member of the academic staff or other employee is under suspension at the time of his removal, such removal shall take effect from the date on which he was placed under suspension.

(*6*) Notwithstanding anything contained in the foregoing provisions of this Statute, a teacher, member of the academic staff or other employee may resign,—

(*a*) if he is a permanent employee, only after giving three months' notice in writing to the Executive Council or the appointing authority, as the case may be, or by paying three months' salary in lieu thereof;

(*b*) if he is not a permanent employee, only after giving one month's notice in writing to the Executive Council or, as the case may be, the appointing authority or by paying one month's salary in lieu thereof:

Provided that such resignation shall take effect only on the date on which the resignation is accepted by the Executive Council or the appointing authority, as the case may be.

24. The Librarian.—There shall be a Librarian of the University, who shall be appointed by the Executive Council on the recommendations of the Selection Committee constituted for the purpose and shall exercise such powers and perform such duties as may be prescribed by Ordinances.

25. Promotion of research, development and consultancy and extension services.—There shall be a Dean of Research and Development to assist the Vice-Chancellor in the planning and co-ordination of research, development and consultancy and extension services in the University, who shall be appointed from amongst the Professors in the manner prescribed by the Ordinances.

26. Honorary degrees.—(*1*) The Executive Council may, on the recommendation of the Academic Council and by a resolution passed by a majority of not less than two-thirds of the members present and voting, make proposals to the Visitor for the conferment of honorary degrees:

Provided that in case of emergency, the Executive Council may, on its own motion, make such proposals.

(*2*) The Executive Council may, by a resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw, with the previous sanction of the Visitor, any honorary degree conferred by the University.

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27. Withdrawal of degrees, etc.—The Executive Council may, by a special resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw a degree or academic distinction conferred on, or any certificate or diploma granted to, any person by the University for good and sufficient cause:

Provided that no such resolution shall be passed until a notice in writing has been given to that person calling upon him to show cause within such time as may be specified in the notice why such a resolution should not be passed and until his objections, if any, and any evidence he may produce in support of them, have been considered by the Executive Council.

28. Maintenance of discipline amongst students of the University.—(*1*) All powers relating to the maintenance of discipline and disciplinary action in relation to the students of the University shall vest in the Vice-Chancellor.

(*2*) There shall be a Proctor of the University to assist the Vice-Chancellor in the exercise of the powers referred to in clause (*1*), who shall be appointed by the Executive Council from amongst the Professors and Readers in the manner prescribed by the Ordinances.

(*3*) The Vice-Chancellor may delegate all or any of the powers referred to in clause (*1*), as he deems proper, to the Proctor and to such other officers as he may specify in this behalf.

(*4*) Without prejudice to the generality of the powers referred to in clause (*1*), the Vice-Chancellor may, in exercise of such powers, by order, direct that any student or students be expelled or rusticated, for a specified period, or be not admitted for a stated period to a course or courses of study in the University or an institution maintained by or admitted to the privileges of the University, or be punished with fine for an amount to be specified in the order, or be debarred from taking an examination or examinations conducted by the University, for one or more years, or that the results of the student or students concerned in the examination or examinations in which he or they have appeared be cancelled.

(*5*) The Deans of Faculties, Heads of Departments and Centres, Directors of University Institutes and Constituent Institutes and Principals of University Colleges and Constituent Colleges shall have the authority to exercise all such disciplinary powers over the students in their respective Faculties, Departments, independent Centres, University Institutes, Constituent Institutes, University Colleges and Constituent Colleges, as may be necessary for the proper conduct of the work thereof.

(*6*) Without prejudice to the powers of the Vice-Chancellor and the Deans, Heads, Directors and Principals specified in clause (*5*), detailed rules of discipline and proper conduct shall be made by the University, and such Deans, Heads, Directors and Principals may also make such supplementary rules as they deem necessary for the purposes stated therein.

(*7*) At the time of admission, every student shall be required to sign a declaration to the effect that he submits himself to the disciplinary jurisdiction of the Vice-Chancellor and other authorities of the University.

29. Maintenance of discipline among Students of institutions admitted to the privileges of the University.—All powers relating to discipline and disciplinary action in relation to students of an institution admitted to the privileges of the University, shall vest in the Director or Principal, as the case may be, of the institution, in accordance with the procedure prescribed by the Ordinances.

30. University Institutes, independent Centres, University Colleges and Constituent Institutes.—(*1*) The Institutes of the University immediately before the commencement of the Act, namely:—

(*i*) The Institute of Inter-Disciplinary Studies;

(*ii*) The Institute of Professional Studies; and

(*iii*) The National Centre of Experimental Mineralogy and Petrology,

shall continue as University Institutes and the Centre of Behavioural and Cognitive Sciences shall continue as an independent Centre of the University, and all matters relating thereto shall be provided for by the Ordinances.

(*2*) The Institute of Correspondence Courses and Continuing Education shall continue as a temporary self-financing University Institute, and all matters relating thereto shall be provided for by the Ordinances.

(*3*) The manner of establishing University Institutes, Centres and University Colleges maintained by the University and other matters relating to them shall be prescribed by the Ordinances.

(*4*) The following shall be the University Colleges, namely:—

The Motilal Nehru Medical College and Swarup Rani Nehru Hospital, Allahabad.

(*5*) The following shall be the Constituent Institutes, namely:—

(*i*) The Govind Ballabh Pant Social Science Institute, Allahabad;

(*ii*) The Harish Chandra Research Institute of Mathematics and Mathematical Physics, Allahabad; and

(*iii*) The Kamala Nehru Post-graduate Medical Institute, Allahabad.

(*6*) The admission of institutions to the privileges of the University as Constituent Institutes and University Colleges and other matters relating to Constituent Institutes and University Colleges shall be prescribed by the Ordinances.

31. Constituent Colleges.—(*1*) The following shall be the Constituent Colleges, namely:—

(*i*) Allahabad Degree College, Allahabad;

(*ii*) Arya Kanya Degree College, Allahabad;

(*iii*) Chaudhary Mahadeo Prasad Degree College, Allahabad;

(*iv*) Ewing Christian College, Allahabad;

(*v*) Iswar Saran Degree College, Allahabad;

(*vi*) Hamidia Girls Degree College, Allahabad;

(*vii*) Jagat Taran Girls Degree College, Allahabad;

(*viii*) K. P. Training College, Allahabad;

(*ix*) Rajarshi Tandon Girls Degree College, Allahabad;

(*x*) Sanwal Dass Sadan Lal Khanna Girls Degree College, Allahabad; and

(*xi*) Shyama Prasad Mukherji Government Degree College, Allahabad.

(*2*) Matters relating to the constitution of the management, the powers of the Vice-Chancellor to issue directions to, and to enforce his orders against, the management, the conditions for the continuance, enlargement and withdrawal of the privileges of Constituent Colleges and the grant to and withdrawal from them of the autonomous status shall be prescribed by the Ordinances:

Provided that every Constituent College shall be required to undergo the process of assessment by a visiting Peer Team of the National Assessment and Accreditation Council, set up under section 12 (*ccc*) of the University Grants Commission Act, 1956 (3 of 1956), and accreditation by the said Council within a period of three years from the date of the commencement of the Act.

(*3*) Where under the provisions of the Uttar Pradesh State Universities Act, 1973 (President's Act 10 of 1973) a Constituent College had been granted permission by the predecessor University to impart instruction for a Post-graduate degree other than the degree of Bachelor of Laws or to exercise the privileges of an Autonomous College, such permission shall cease to have effect upon the expiry of the academic year immediately following the academic year during which the Act has commenced or of the period for which such permission had been granted by the predecessor University, whichever is earlier, without prejudice to the right of the Constituent College concerned to apply afresh for such permission in accordance with the provisions of the Statutes and the Ordinances.

(*4*) There shall be constituted, by Ordinances, a College Development Council to monitor and promote the academic functioning and development of the Constituent Colleges.

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(*5*) The College Development Council shall be headed by the Dean of College Development, who shall be appointed by the Executive Council from among the Professors of the University in the manner prescribed by the Ordinances.

32. Convocations.—Convocations of the University for the conferring of degrees or for other purposes shall be held in such manner as may be prescribed by the Ordinances.

33. Acting Chairman of meetings.—Where no provision is made for a President or Chairman to preside over a meeting of any authority of the University or any Committee of such authority or when the President or Chairman so provided for is absent, the members present shall elect one from among themselves to preside at such meeting.

34. Resignation.—Any member, other than an *ex officio* member, of the Court, the Executive Council, the Academic Council or any other authority of the University or any Committee of such authority may resign by letter addressed to the Registrar and the resignation shall take effect as soon as such letter is received by the Registrar.

35. Disqualifications.—(*1*) A person shall be disqualified for being chosen as, and for being, a member of any of the authorities of the University,—

(*i*) if he is of unsound mind;

(*ii*) if he is an undischarged insolvent;

(*iii*) if he has been convicted by a court of law of an offence involving moral turpitude and sentenced in respect thereof to imprisonment for not less than six months.

(*2*) If any question arises as to whether a person is or had been subjected to any of the disqualifications mentioned in clause (*1*), the question shall be referred to the Visitor and his decision shall be final and no suit or other proceeding shall lie in any civil court against such decision.

36. Residence condition for membership and office.—Notwithstanding anything contained in the Statutes, a person who is not ordinarily resident in India shall not be eligible to be an officer of the University or a member of any authority of the University.

37. Membership of authorities by virtue of membership of other bodies.—Notwithstanding anything contained in the Statutes, a person who holds any post in the University or is a member of any authority or body of the University in his capacity as a member of a particular authority or body or as the holder of a particular appointment shall hold such office or membership only for so long as he continues to be a member of that particular authority or body or the holder of that particular appointment, as the case may be.

38. Registered Graduates.—The provisions in respect of the registration of graduates and the maintenance of the register of Registered Graduates shall be prescribed by the Ordinances.

39. Dean and Board of Students Welfare.—(*1*) There shall be a Dean of Students Welfare to co-ordinate the measures for promoting the welfare of the students of the University, who shall be appointed by the Executive Council from among the Professors and Readers of the University in the manner prescribed by the Ordinances.

(*2*) There shall be constituted in the University, a Board of Students Welfare, the constitution, term of office of members and functions whereof shall be prescribed by the Ordinances.

40. Ordinances, how made.—(*1*) The first Ordinances made under sub-section (*2*) of section 29 may be amended, repealed or added to at any time by the Executive Council in the manner specified in the following sub-sections.

(*2*) No Ordinance in respect of the matters enumerated in sub-section (*1*) of section 29 shall be made by the Executive Council unless a draft of such Ordinance has been proposed by the Academic Council.

(*3*) The Executive Council shall not have power to amend any draft of any Ordinance proposed by the Academic Council under clause (*2*), but may reject the proposal or return the draft to the Academic Council for re-consideration, either in whole or in part, together with any amendment which the Executive Council may suggest.

(*4*) Where the Executive Council has rejected or returned the draft of an Ordinance proposed by the Academic Council, the Academic Council may consider the question afresh and in case the original draft is reaffirmed by a majority of not less than two-thirds of the members present and voting and more than half the total number of members of the Academic Council, the draft may be sent back to the Executive Council which shall either adopt it or refer it to the Visitor whose decision shall be final.

(*5*) Every Ordinance made by the Executive Council shall come into effect immediately.

(*6*) Every Ordinance made by the Executive Council shall be submitted to the Visitor within two weeks from the date of its adoption.

(*7*) The Visitor shall have the power to direct the University to suspend the operation of any Ordinance.

(*8*) The Visitor shall inform the Executive Council about his objection to the Ordinance referred to in clause (*7*) and may, after receiving the comments of the University, either withdraw the order suspending the Ordinance or disallow the Ordinance, and his decision shall be final.

41. Regulations.—(*1*) The authorities of the University may make Regulations consistent with the Act, the Statutes and the Ordinances for the following matters, namely:—

(*i*) laying down the procedure to be observed at their meetings and the number of members required to form a quorum;

(*ii*) providing for all matters which are required by the Act, the Statutes or the Ordinances to be prescribed by Regulations;

(*iii*) providing for all other matters solely concerning such authorities or committees appointed by them and not provided for by the Act, the Statutes or the Ordinances.

(*2*) Every authority of the University shall make Regulations providing for the giving of notice to the members of such authority of the dates of meeting and of the business to be considered at meetings and for the keeping of a record of the proceedings of meetings.

(*3*) The Executive Council may direct the amendment in such manner as it may specify of any Regulation made under the Statutes or the annulment of any such Regulation.

42. Delegation of Powers.—Subject to the provisions of the Act and the Statutes, any officer or authority of the University may delegate his or its powers to any other officer or authority or person under his or its respective control and subject to the condition that overall responsibility for the exercise of the powers so delegated shall continue to vest in the officer or authority delegating such powers.

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